

**IN THE CIRCUIT COURT OF THE SECOND JUDICIAL CIRCUIT IN AND FOR
LEON COUNTY, FLORIDA**

CASE NO. 2025-CA-2469

CHRISTOPHER HANSON, Plaintiff/Petitioner,

v.

THE FLORIDA BAR, et al., Defendants/Respondents.

PLAINTIFF'S VERIFIED MOTION FOR REHEARING

COMES NOW the Plaintiff/Petitioner, CHRISTOPHER HANSON, pursuant to Florida Rule of Civil Procedure 1.530, and moves this Court to rehear and vacate its *Order Granting The Florida Bar Defendants' Motion to Dismiss and Final Judgment for Defendants*, entered on February 13, 2026.

INTRODUCTION

1. This Motion is not a mere re-argument of points previously made. It is filed to address a fundamental and dispositive error of law that appears on the face of the Court's Order: **The refusal to exercise jurisdiction expressly mandated by the Florida Supreme Court.**
2. The Court's Order dismisses the *entire* action based on the premise that "The Court does not have jurisdiction to review the Bar's decision... See *Tyson v. The Fla. Bar*." [Order at ¶ 1].
3. While *Tyson* limits review of discretionary disciplinary *outcomes*, it does not—and cannot—strip this Court of jurisdiction over **Count I (Public Records)**.
4. By dismissing the Public Records count under *Tyson*, the Court has not merely made a legal error; it has effectively engaged in "I'll pass" jurisprudence—declining to perform a specific, mandatory judicial duty assigned to the Circuit Court by Rule 2.420(e)(2).

I. THE COURT OVERLOOKED BINDING LAW GRANTING IT EXCLUSIVE JURISDICTION OVER PUBLIC RECORDS DISPUTES

5. The Court's Order improperly conflates Plaintiff's actions for public records and ministerial duties, with the *public records* cause of action. The Court's cited law relating to actions for damages, completely absent and inapplicable to Plaintiff's causes of action, is readily distinguishable pointing solely to Rule 2.420(e).
6. There is no claim for damages in the present facts making *Tyson* irrelevant. Rule 2.420(e)(2) controls placing Jurisdiction on these claims in the 2nd Circuit Court. Using

the "Exclusive Jurisdiction" doctrine to dismiss Plaintiff's Mandamus action is patently incorrect.

A. Rule 2.420(e)(2) Mandates Circuit Court Jurisdiction

7. The Florida Supreme Court has exclusive jurisdiction over attorney discipline (Art. V, § 15), but it has explicitly delegated the enforcement of access to judicial records to the **Circuit Court**.
8. Florida Rule of General Practice and Judicial Administration 2.420(e)(2) states in plain language:

"For denials of access (relating to judicial records) not involving a judge as the custodian, actions for enforcement **must be filed in the circuit court** of the circuit in which the denial occurred."
9. The Custodians in this case are The Florida Bar and its officers (Courtemanche, et al.), who are not judges. Therefore, under the Supreme Court's own rule, this Court—and **only** this Court—has jurisdiction to hear the dispute regarding the concealment of records and performance of ministerial duties.

B. The Court's "Abdication" of Jurisdiction

10. By dismissing the case based on *Tyson*, the Court has ruled that it lacks jurisdiction to enforce Rule 2.420 against the Bar. This ruling creates an absurd legal impossibility:
 - i. The Supreme Court says: Go to Circuit Court to get Bar records. (Rule 2.420(e)(2)).
 - ii. This Court says: I have no jurisdiction because the Supreme Court handles the Bar.
 - iii. This leaves Plaintiff in an impossible position while leaving the Bar free to conceal records and subvert the truth.
11. This result leaving Plaintiff with **no forum** to enforce a constitutional right under Art. I, Sec. 24, remains inexplicable given the clear statement of jurisdiction in the rules.
12. A court does not have the discretion to "pass" on a case simply because the Defendants are powerful or the subject matter is controversial.
13. The refusal to acknowledge Rule 2.420(e)(2) constitutes a refusal to exercise jurisdiction, which is reversible error. *See English v. McCrary*, 348 So. 2d 293 (Fla. 1977) (prohibition lies where a court acts without jurisdiction, but mandamus lies where a court *refuses* to exercise jurisdiction it possesses).

II. THE COURT MISAPPREHENDED THE APPLICATION OF *TYSON V. FLORIDA BAR*

14. The Order cites *Tyson* for the proposition that the Court cannot "review the Bar's decision." [Order at ¶ 1]. This misapprehends the relief sought in the Petition.
15. **Tyson holds:** "Mandamus lies to compel the performance of a specific imperative ministerial duty." *Tyson*, 826 So. 2d at 268 [Source 575].
16. **The Distinction:** In *Tyson*, the writ was denied because the record showed the Bar *had* "investigated" and *had* obtained a response. The duty was performed; the plaintiff just disliked the outcome.

17. **This Case:** The Petition alleges the Bar **failed** to perform the investigation required by Rule 3-7.3 and failed to obtain a response. Plaintiff is not asking this Court to decide the outcome of the grievance; Plaintiff is asking this Court to compel the *ministerial act* of processing the complaint and producing the resulting public records.
18. By citing *Tyson* to dismiss a claim based on the *failure* to investigate, the Court ignores the very exception *Tyson* carved out for "imperative ministerial duties."

III. THE COURT MISAPPLIED *COLE V. OWENS* HOLDING LACK OF JURISDICTION ON CLAIMS FOR DAMAGES TO THIS MANDAMUS ACTION

19. The Order cites *Cole v. Owens* to assert that Defendants are "immune from suit." [Order at ¶ 2]. This is a fundamental misapplication of the doctrine of immunity.
20. *Cole v. Owens* was a tort action seeking **money damages**.
21. This is a Petition for Writ of Mandamus seeking **specific performance** and public records.
22. Sovereign and judicial immunity protect an official's personal assets from liability; they do not immunize an official from a court order commanding them to follow the law. If *Cole* barred mandamus, no citizen could ever compel a government official to produce a public record. The Court's reliance on *Cole* to dismiss a mandamus and public records action is legally unsupportable and suggests an intent to shield the Defendants from accountability rather than to apply the correct legal standard.

IV. CONCLUSION

23. The Court's Order effectively declares that The Florida Bar is above the law—that it need not comply with Public Records rules and that the Circuit Court is powerless to enforce them. This is not the law. It is a choice by this Court to decline jurisdiction it clearly possesses.
24. By denying the specific rule granting jurisdiction (Rule 2.420(e)(2)) without explanation, the Court is creating a record of intentional disregard for its constitutional duties.

WHEREFORE, Plaintiff requests this Court:

VACATE the Order of Dismissal;

REINSTATE Count I (Public Records) and Count II (Mandamus regarding ministerial duties); and

MAKE FINDINGS OF FACT AND LAW including that Plaintiff has demonstrated a prima facie case for mandamus relief requested in the petitions for writ and response to motion to dismiss; and

ISSUE an Immediate Writ of Mandamus requiring the Defendants to show cause why they should not produce the records and complete their ministerial duties including opening an investigation as mandated by their own rules.

Respectfully submitted,

/s/Christopher Hanson Plaintiff/Petitioner, and attorney for same

VERIFICATION

Under penalties of perjury, I declare that I have read the foregoing Plaintiff's Verified Motion for Rehearing and that the facts stated in it are true.

/s/Christopher Hanson Plaintiff/Petitioner, and attorney for same

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing has been furnished via the Florida Courts E-Filing Portal to Counsel for Defendants, Greenberg Traurig, P.A. / John Londot, on this 19th day of February, 2026.

/s/Christopher Hanson Plaintiff/Petitioner, and attorney for same

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